



United States: Selected Legislative History of the Uniform Code of Military Justice, 2001–2021

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I. Introduction

Since 2001, several National Defense Authorization Acts (NDAAs) have amended the Uniform Code of Military Justice (UCMJ),¹ specifically, the NDAAs for fiscal years 2014, 2016, 2017, 2018, and 2019. The primary purposes of the amendments were to (1) increase the professionalization of military judges and magistrates and (2) improve the handling and prosecution of sexual assault and sexual harassment offenses and the treatment of victims. Legislation that would further amend the UCMJ has been introduced in the current Congress. This selected legislative history is intended to assist military law practitioners and researchers in finding the most significant legislative materials relating to these UCMJ amendments.

II. Bills under Consideration in the 117th Congress

- S. 1520 - Military Justice Improvement and Increasing Prevention Act of 2021.²
- H.R. 4104 - Vanessa Guillén Military Justice Improvement and Increasing Prevention Act.³
- H.R. 4350 - National Defense Authorization Act for Fiscal Year 2022.⁴
- S. 2792 - National Defense Authorization Act for Fiscal Year 2022.⁵
- S. 1605 - National Defense Authorization Act for Fiscal Year 2022 (formerly titled, A Bill to designate the National Pulse Memorial located at 1912 South Orange Avenue in Orlando, Florida).⁶

Both S. 1520 and H.R. 4104 propose reforming the disposition of charges and convening of courts-martial for certain offenses under the UCMJ and strengthening prevention of sexual assaults and other crimes in the military. H.R. 4350 passed the House,⁷ but did not receive a vote in the Senate.

¹ Uniform Code of Military Justice, 10 U.S.C. §§ 801–946a, <https://perma.cc/C3HJ-M8XG>.

² S. 1520, 117th Cong. (2021), <https://www.congress.gov/bill/117th-congress/senate-bill/1520>.

³ H.R. 4104, 117th Cong. (2021), <https://www.congress.gov/bill/117th-congress/house-bill/4104>.

⁴ H.R. 4350, 117th Cong. (2021), <https://www.congress.gov/bill/117th-congress/house-bill/4350>.

⁵ S. 2792, 117th Cong. (2021), <https://www.congress.gov/bill/117th-congress/senate-bill/2792>.

⁶ S. 1605, 117th Cong. (2021), <https://www.congress.gov/bill/117th-congress/senate-bill/1605>.

⁷ 167 Cong. Rec. H5115-28 (Sept. 23, 2021), <https://perma.cc/7PPY-MGDA>.

S. 1605 became the primary legislative vehicle for the National Defense Authorization Act for Fiscal Year 2022. The bill passed the Senate by unanimous consent on June 9, 2021;⁸ passed the House on December 7, 2021;⁹ and the Senate agreed to the House amended version of the bill on December 15, 2021.¹⁰ The bill was presented to President Biden for his signature on December 23, 2021, and currently awaits his signature for enactment.

S. 1605 reforms the investigation and prosecution of certain offenses under the UCMJ by establishing special trial counsel with exclusive authority to refer those offenses to trial by court-martial.¹¹ Each military Secretary is to appoint a lead special trial counsel for the service in the grade of O-7 or above with significant military justice experience, reporting directly to the Secretary.¹² S. 1605 also includes reforms to the UCMJ that criminalize sexual harassment¹³ and provides that investigations into such crimes are to be conducted by an independent investigator.¹⁴

A. Legislative History Materials

1. Reports

- H.R. Rep. 117-118 pt. 1 (related to H.R. 4350)¹⁵
- H.R. Rep. 117-118 pt. 2 (related to H.R. 4350)¹⁶
- S. Rep. 117-39 (related to S. 2792)¹⁷

2. Hearings

None.

⁸ 117 Cong. Rec. S4013 (June 9, 2021), <https://perma.cc/3D72-2DGU> (as titled *A bill to designate the National Pulse Memorial located at 1912 South Orange Avenue in Orlando Florida*).

⁹ 117 Cong. Rec. H6933-7215 (Dec. 7, 2021), <https://perma.cc/ETR6-HH9K> (amended as a substitute retitled as *National Defense Authorization Act for Fiscal Year 2022*).

¹⁰ 117 Cong. Rec. S9167-9175 (Dec. 15, 2021), <https://perma.cc/35WJ-GDHA>.

¹¹ National Defense Authorization Act for Fiscal Year 2022, S. 1605, 117th Cong., sec. 531 (2021), <https://www.congress.gov/bill/117th-congress/senate-bill/1605/text>.

¹² Id. sec. 532.

¹³ Id. sec. 539D.

¹⁴ Id. sec. 543.

¹⁵ H.R. Rep. 117-118 pt. 1 (2021), <https://perma.cc/286L-8KHP>.

¹⁶ H.R. Rep. 117-118 pt. 1 (2021), <https://perma.cc/FS2R-86MR>.

¹⁷ S. Rep. 117-39 (2021), <https://perma.cc/5BWA-XFR9>.

III. Amending Legislation during Fiscal Years 2014 to 2019, in Reverse Chronological Order

A. John S. McCain National Defense Authorization Act for Fiscal Year 2019 (H.R. 5515)

1. *Summary of Provisions Affecting the UCMJ*

The John S. McCain National Defense Authorization Act for Fiscal Year 2019 includes strangulation and suffocation in the definition of aggravated assault.¹⁸ It adds a punitive article on domestic violence.¹⁹

2. *Legislative History*

a. Reports

- H.R. Rep. No. 115-676, pt. 1,²⁰
- H.R. Rep. No. 115-676, pt. 2,²¹
- H.R. Rep. No. 115-863 (Conf. Rep.),²² and
- H.R. Rep. No. 115-874 (Conf. Rep.).²³

b. Hearings

None.

c. Congressional Record (Vol. 164)

- May 22–24, 2018, considered and passed House.²⁴
- June 11–14, 18, 2018, considered and passed Senate, as amended.²⁵

¹⁸ John S. McCain National Defense Authorization Act for Fiscal Year 2019, Pub. L. 115-232, 132 Stat. 1636 (2018), sec. 531, <https://perma.cc/KHQ7-P8J2>.

¹⁹ Id. sec. 532.

²⁰ H.R. Rep. No. 115-676, pt. 1 (2018), <https://perma.cc/W8QP-A4AC>.

²¹ H.R. Rep. No. 115-676, pt. 2 (2018), <https://perma.cc/NGY4-EY47>.

²² H.R. Rep. No. 115-863 (2018) (Conf. Rep.), <https://perma.cc/6C95-XR2M>.

²³ H.R. Rep. No. 115-874 (2018) (Conf. Rep.), <https://perma.cc/L74W-NL7X>.

²⁴ 164 Cong. Rec. H4367-4562 (May 22, 2018), <https://perma.cc/4UKD-QFQM>; H4603-06 (May 23, 2018), <https://perma.cc/FN2T-SYYX>; H4606-72 (May 23), <https://perma.cc/85WS-VPTY>; H4699-4722 (May 24), <https://perma.cc/G9NQ-WMED>.

²⁵ 164 Cong. Rec. S3403-3596 (June 11, 2018), <https://perma.cc/KA6X-W7WV>; S3730-38 (June 12), <https://perma.cc/96HA-2PL6>; S3739-3754 (June 12), <https://perma.cc/883D-E5VQ>; S3756-3757 (June 12),

- July 24, 2018, House recommitted conference report pursuant to H. Res. 1019.²⁶
- July 26, 2018, House agreed to conference report.²⁷
- July 26, 2018, Senate considered conference report.²⁸
- Aug. 1, 2018, Senate agreed to conference report.²⁹

d. Presidential Signing Statement

Presidential Statement on Signing the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Aug. 13, 2018).³⁰

B. National Defense Authorization Act for Fiscal Year 2018 (H.R. 2810)

1. Summary of Provisions Affecting the UCMJ

The National Defense Authorization Act for Fiscal Year 2018 prohibits the wrongful broadcast or distribution of intimate visual images or visual images of sexually explicit conduct.³¹ It requires garnishment of the retirement pay of a service member to satisfy a judgment rendered for physically, sexually, or emotionally abusing a child.³²

2. Legislative History

a. Reports

- H.R. Rep. No. 115-200, pt. 1,³³
- H.R. Rep. No. 115-200, pt. 2,³⁴ and
- H.R. Rep. No. 115-404 (Conf. Rep.).³⁵

<https://perma.cc/2QDD-DHQT>; S3866-3899 (June 13), <https://perma.cc/KDD9-XY49>; S3932-3943 (June 14), <https://perma.cc/L6K4-32DX>, S3961-3973 (June 18), <https://perma.cc/7LDA-94XN>.

²⁶ 164 Cong. Rec. H7150, <https://perma.cc/S2QG-2R4K>.

²⁷ 164 Cong. Rec. H7708-09, <https://perma.cc/H8A9-J2FE>.

²⁸ 164 Cong. Rec. S5412-17, <https://perma.cc/4FZH-8UTD>.

²⁹ 164 Cong. Rec. S5538-43, <https://perma.cc/U6C4-V4N8>.

³⁰ Presidential Statement on Signing the John S. McCain National Defense Authorization Act for Fiscal Year 2019, 2018 Daily Comp. Pres. Doc. 00533 (Aug. 13, 2018), <https://perma.cc/2U8C-Q5ZC>.

³¹ National Defense Authorization Act for Fiscal Year 2018, Pub. L. 115-91, 131 Stat. 1283 (2017), sec. 533, <https://perma.cc/LGP6-SUYK>.

³² Id. sec. 534.

³³ H.R. Rep. No. 115-200, pt. 1 (2017), <https://perma.cc/MUJ4-58GV>.

³⁴ H.R. Rep. No. 115-200, pt. 2 (2017), <https://perma.cc/6W8V-4W96>.

³⁵ H.R. Rep. No. 115-404 (2017) (Conf. Rep.), <https://perma.cc/6WL9-YZQJ>.

b. Hearings

None.

c. Congressional Record (Vol. 163)

- July 12–14, 2017 - considered and passed House.³⁶
- Sept. 13, 14, 18, 2017 - considered and passed Senate, as amended.³⁷
- Sept. 19, 2017 - Senate considered and adopted amendment No. 545.³⁸
- Sept. 25, 2017 - Senate modified amendments Nos. 1065 and 1086.³⁹
- Nov. 14, 2017 - House agreed to conference report.⁴⁰
- Nov. 16, 2017 - Senate agreed to conference report.⁴¹

d. Presidential Signing Statement

Presidential Statement on Signing the National Defense Authorization Act for Fiscal Year 2018 (Dec. 12, 2017).⁴²

C. Military Justice Act of 2016 (S. 2943)

1. Summary of Provisions Affecting the UCMJ

The Military Justice Act of 2016 was a significant rewrite and reform of the UCMJ based on a comprehensive review by the general counsel of the Department of Defense, which focused particularly on responses to sexual assault.⁴³ It changed requirements for the qualification of military judges and magistrates and the disqualification of trial counsel and defense counsel.⁴⁴

³⁶ 163 Cong. Rec. H5534-5756 (July 12), <https://perma.cc/R89J-GACK>; H5783-90 (July 13), <https://perma.cc/ZZ42-3X7N>; H5836-68 (July 14), <https://perma.cc/QPW5-SD92>.

³⁷ 163 Cong. Rec. S5245-53 (Sept. 13), <https://perma.cc/57AL-GMH9>; S5476-5477 (Sept. 13), <https://perma.cc/5KUU-772X>; S5712-27 (Sept. 14), <https://perma.cc/E47W-FGB6>; S5731-38, <https://perma.cc/XQ83-ZQMP>; S5776-96 (Sept. 18), <https://perma.cc/M5ZD-B6UL>.

³⁸ 163 Cong. Rec. S5867, <https://perma.cc/REW4-NB83>.

³⁹ 163 Cong. Rec. S5878, S5893, S5949, <https://perma.cc/65HB-5EXS>.

⁴⁰ 163 Cong. Rec. H9238-39, <https://perma.cc/VQS3-TSTU>.

⁴¹ 163 Cong. Rec. S7276-91, <https://perma.cc/4QH4-D4WG>.

⁴² Presidential Statement on Signing the National Defense Authorization Act for Fiscal Year 2018, 2017 Daily Comp. Pres. Doc. 00906 (Dec. 12, 2017), <https://perma.cc/7FZ9-JED6>.

⁴³ Military Justice Act of 2016, Pub. L. 114-328, 130 Stat. 2894 (incorporated as div. E, sec. 5001 et seq. of the National Defense Authorization Act for Fiscal Year 2017, 130 Stat. 2000), <https://perma.cc/8EF2-CFM6>.

⁴⁴ *Id.* secs. 5103, 5184, 5185, 5186.

The act reorganized punitive articles,⁴⁵ and it added offenses for credit card fraud and misuse of government computers.⁴⁶ In addition, it made significant changes to pretrial, trial, sentencing, and appellate procedures.⁴⁷

2. *Related Bills*

- H.R. 4909 - National Defense Authorization Act for Fiscal Year 2017 (engrossed).⁴⁸
- S. 2943 - National Defense Authorization Act for Fiscal Year 2017 (became P.L. 114-328).⁴⁹
- H.R. 5257 - Justice for Victims of Military Sexual Assault Act.⁵⁰

3. *Legislative History*

a. Reports

- S. Rep. No. 114-255,⁵¹
- H.R. Rep. No. 114-840 (Conf. Rep.),⁵²
- H.R. Rep. No. 114-537, pt. 1,⁵³ and
- H.R. Rep. No. 114-537, pt. 2.⁵⁴

b. Hearings

None.

c. Congressional Record (Vol. 162)

- June 6–10, 13, 14, 2016, considered and passed Senate.⁵⁵

⁴⁵ Id. sec. 5401.

⁴⁶ Id. secs. 5432, 5436.

⁴⁷ Id. secs. 5201-5338.

⁴⁸ H. R. 4909, 114th Cong. (2016), <https://www.congress.gov/bill/114th-congress/house-bill/4909>.

⁴⁹ S. 2943, 114th Cong. (2016), <https://www.congress.gov/bill/114th-congress/senate-bill/2943>.

⁵⁰ H.R. 5257, 114th Cong. (2016), <https://www.congress.gov/bill/114th-congress/house-bill/5257>.

⁵¹ S. Rep. No. 114-255 (2016), <https://perma.cc/8KGB-CJ6Y>.

⁵² H.R. Rep. No. 114-840 (2016) (Conf. Rep.), <https://perma.cc/6JYP-X2A4>.

⁵³ H.R. Rep. No. 114-537, pt. 1 (2016), <https://perma.cc/VT3H-5CVC>.

⁵⁴ H.R. Rep. No. 114-537, pt. 2 (2016), <https://perma.cc/ZU8V-NTC8>.

⁵⁵ 162 Cong. Rec. S3397-3408 (June 6), <https://perma.cc/8MLB-VCCG>; S3474-92 (June 7), <https://perma.cc/H9BQ-CSQE>; S3492-3511, <https://perma.cc/4ME5-JJJC>; S3525-34, <https://perma.cc/97MA-CU67>; S3601-04 (June 8), <https://perma.cc/4DN5-Q87L>; S3604-32, <https://perma.cc/8VCL-KPN8>; S3635, <https://perma.cc/4QWF-MNTA>; S3668-77 (June 9), <https://perma.cc/T78B-BPEJ>; S3677-3715,

- July 7, 2016, considered and passed House, amended, in lieu of H.R. 4909, pursuant to H.R. Res. 809.⁵⁶
- Dec. 2, 2016, House agreed to conference report.⁵⁷
- Dec. 7, 8, 2016, Senate considered and agreed to conference report.⁵⁸

d. Presidential Signing Statement

Presidential Statement on Signing the National Defense Authorization Act for Fiscal Year 2017 (Dec. 23, 2016).⁵⁹

4. *Related Congressional Research Service Report*

Kristy N. Kamarck et al., Cong. Res. Serv., R44577, *FY2017 National Defense Authorization Act: Selected Military Personnel Issues* 33–34 (2017).⁶⁰

D. National Defense Authorization Act for Fiscal Year 2016 (S. 1356)

1. *Summary of Provisions Affecting the UCMJ*

The National Defense Authorization Act for Fiscal Year 2016 amends the UCMJ to authorize a victim of sexual assault or domestic violence to petition the Court of Criminal Appeals for a writ of mandamus based on an assertion that the victim's rights at an Article 32, UCMJ, investigation were violated or that the victim is subject to an order to submit to a deposition notwithstanding the fact that the victim is available to testify at a court-martial.⁶¹ The act requires the Department of Defense to examine changing the UCMJ, especially regarding sex-related offenses.⁶² It requires timely notifying a victim of a sex-related offense of the availability of a Special Victims' Counsel before interviewing or requesting a statement from the victim, subject to exceptions for exigent

<https://perma.cc/S8SZ-HHRJ>; S3787-90 (June 10), <https://perma.cc/T3M4-88QS>; S3791-92 (June 10), <https://perma.cc/6N75-99MY>; S3789 (Cloture Vote No. 97), <https://perma.cc/R8VF-FTS2>; S3815-23 (June 13), <https://perma.cc/FJ4S-BWRC>; S3835-41 (June 14), <https://perma.cc/3PWQ-KL78>.

⁵⁶ 162 Cong. Rec. H4522-23, <https://perma.cc/4H9N-A47Z>.

⁵⁷ 162 Cong. Rec. H7123-34, <https://perma.cc/K3JM-5NA4>.

⁵⁸ 162 Cong. Rec. S6795, S6845 (Dec. 7), <https://perma.cc/L829-LRXM>; S6872-73 (Dec. 8), <https://perma.cc/5SYK-FV3Z>.

⁵⁹ Presidential Statement on Signing the National Defense Authorization Act for Fiscal Year 2017, 2016 Daily Comp. Pres. Doc. 00863 (Dec. 23, 2016), <https://perma.cc/6HMF-F83Y>.

⁶⁰ Kristy N. Kamarck et al., Cong. Res. Serv., R44577, *FY2017 National Defense Authorization Act: Selected Military Personnel Issues* 33–34 (2017), <https://perma.cc/W2FD-CRMW>.

⁶¹ National Defense Authorization Act for Fiscal Year 2016, Pub. L. 114-92, 129 Stat. 726 (2015), sec. 531, <https://perma.cc/72TL-UPBK>.

⁶² Id. sec. 537.

circumstances.⁶³ The statute modifies the Rules for Courts-Martial to prohibit giving a less favorable rating to any member of the Armed Forces serving as a Special Victims' Counsel because of the zeal with which the counsel represented a victim.⁶⁴

2. *Legislative History*

a. Reports

None.

b. Hearings

None.

c. Congressional Record (Vol. 161)

- May 14, 2015, considered and passed Senate.⁶⁵
- Nov. 5, 2015, considered and passed House, as amended.⁶⁶
- Nov. 10, 2015, Senate concurred in House amendment.⁶⁷

d. Presidential Signing Statement

Presidential Statement on Signing the National Defense Authorization Act for Fiscal Year 2016 (Nov. 25, 2015).⁶⁸

E. National Defense Authorization Act for Fiscal Year 2014 (H.R. 3304)

1. *Summary of Provisions Affecting the UCMJ*

The National Defense Authorization Act for Fiscal Year 2014 made changes to procedures and sentencing in prosecuting cases alleging sexual assault and added provisions addressing religious freedom and conscience.⁶⁹

⁶³ Id. sec. 534.

⁶⁴ Id. sec. 544.

⁶⁵ 161 Cong. Rec. S2946, <https://perma.cc/C53E-7TTU>.

⁶⁶ 161 Cong. Rec. H7747-8129, <https://perma.cc/ZUK7-K88V>.

⁶⁷ 161 Cong. Rec. S7875-78, <https://perma.cc/66EC-JUM6>.

⁶⁸ Presidential Statement on Signing the National Defense Authorization Act for Fiscal Year 2016, 2015 Daily Comp. Pres. Doc. 00843 (Nov. 25, 2015), <https://perma.cc/H4NA-VKH5>.

⁶⁹ National Defense Authorization Act for Fiscal Year 2014, Pub. L. 113-66, 127 Stat. 672 (2013), <https://perma.cc/444L-QKB2>.

a. Sexual Assault

The act establishes mandatory minimum sentences for conviction by a court-martial of a sex-related crime; provides for victims of sex-related offenses to obtain independent legal representation, rather than Judge Advocate General counsel; prohibits commanding officers from considering the accused's "character and military services" in deciding whether to prosecute sexual assault charges; limits a commander's authority to grant clemency; and creates the right of a complaining witness to testify at the clemency phase.⁷⁰

b. Religious Freedom and Conscience

The statute requires accommodation of religious freedom and belief, unless it has an adverse impact on military readiness, unit cohesion, and good order and discipline. The expression of belief cannot be used as a basis for adverse personnel action.⁷¹

2. *Related Bill*

S. 1197, National Defense Authorization Act for Fiscal Year 2014.⁷²

3. *Legislative History*

a. Reports

- Staff of H. Comm. on Armed Servs., Print, Legislative Text and Joint Explanatory Statement to Accompany H.R. 3304 (Comm. Print 2013).⁷³
- S. Rep. No. 113-44 (related to S.1197).⁷⁴

b. Hearings

- S. Hrg. 113-320, *Pending Legislation Regarding Sexual Assaults in the Military: Hearing Before the S. Comm. on Armed Servs.*, 113th Cong. (2013).⁷⁵

⁷⁰ Id. sec. 1706.

⁷¹ Id. sec. 532.

⁷² S. 1197, 113th Cong. (2013), <https://www.congress.gov/113/bills/s1197/BILLS-113s1197pcs.pdf>.

⁷³ Staff of H. Comm. on Armed Servs., Legislative Text and Joint Explanatory Statement to Accompany H.R. 3304 (Comm. Print 2013), <https://perma.cc/W5VF-SR53>.

⁷⁴ S. Rep. No. 113-44 (2013), <https://perma.cc/7CWK-8Z3S>.

⁷⁵ S. Hrg. 113-320, *Pending Legislation Regarding Sexual Assaults in the Military: Hearing Before the S. Comm. on Armed Servs.*, 113th Cong. (2013), https://www.armed-services.senate.gov/imo/media/doc/pendinglegislation_sexualassaultsinmilitary_fullcomm_hearing_060413.pdf.

- *Department of Defense Authorization for Appropriations for Fiscal Year 2014 and the Future Years Defense Program: Hearing Before the S. Comm. on Armed Servs.*, 113th Cong. (2013).⁷⁶

b. Congressional Record (Vol. 159)

- Oct. 28, 2013, considered and passed House.⁷⁷
- Nov. 19, 2013, considered and passed Senate as amended.⁷⁸
- Dec. 12, 2013, House concurred in Senate amendment with an amendment pursuant to H. Res. 441.⁷⁹
- Dec. 12, 2013, House published a joint explanatory statement to accompany the Act.⁸⁰
- Dec. 19, 2013, Senate considered and concurred in House amendment.⁸¹

c. Presidential Signing Statement

Presidential Statement on Signing the National Defense Authorization Act for Fiscal Year 2014 (Dec. 26, 2013).⁸²

4. *Related Congressional Research Service Report*

Pat Towell & Amy Belasco, Cong. Res. Serv., R43323, *Defense: FY2014 Authorization and Appropriations* (2014).⁸³

⁷⁶ *Department of Defense Authorization for Appropriations for Fiscal Year 2014 and the Future Years Defense Program: Hearing Before the S. Comm. on Armed Servs.*, 113th Cong. (2013), pt. 1, <https://perma.cc/W3RZ-9MAU>; pt. 2, <https://perma.cc/CQX6-CC3W>; pt. 3, <https://perma.cc/C9WQ-GBBM>; pt. 4, <https://perma.cc/EJW5-JNCB>; pt. 5, <https://perma.cc/CRR7-QXMJ>; pt. 6, <https://perma.cc/FCD8-AUKT>; pt. 7, <https://perma.cc/DCD9-5HCR>.

⁷⁷ 159 Cong. Rec. H6778-79, <https://perma.cc/BCB7-AN2W>.

⁷⁸ 159 Cong. Rec. S8290, <https://perma.cc/E44E-2ACC>.

⁷⁹ 159 Cong. Rec. H7717-7894, <https://perma.cc/PUZ8-PEAP>; (Roll Call Vote No. 641), H8084-8085, <https://perma.cc/H28Y-NFBS>.

⁸⁰ 159 Cong. Rec. H7894-H8046, <https://perma.cc/93XT-W38V>.

⁸¹ 159 Cong. Rec. S9067-68, <https://perma.cc/H9XV-KR62>.

⁸² Presidential Statement on Signing the National Defense Authorization Act for Fiscal Year 2014, 2013 Daily Comp. Pres. Doc. 00876 (Dec. 26, 2013), <https://perma.cc/XYL8-UYPS>.

⁸³ Pat Towell & Amy Belasco, Cong. Res. Serv., R43323, *Defense: FY2014 Authorization and Appropriations* (2014), <https://perma.cc/N69T-8R3V>.